

Manish Gulati v. Purvanchal Vidyut Vitran Nigam Limited

High Court of Judicature at Allahabad · Division Bench · 4 November 2016 · Writ-C No. 52628 of 2016 · Writ - C No. 52628 of 2016 · **Writ disposed; representation treated as Clause 6.5 application; disconnection stayed.**

HEADNOTE

Pending representation against alleged inflated bills treated as a Clause 6.5 application; Executive Engineer directed to decide by a speaking order within four weeks; coercive disconnection stayed for six weeks or until that disposal, whichever is earlier.

FACTUAL SUMMARY

Manish Gulati petitioned the Allahabad High Court alleging that Purvanchal Vidyut Vitran Nigam Limited had issued inflated electricity bills. His representation against those bills remained pending, while the licensee proceeded with coercive disconnection. Without examining the bills on merits, the Division Bench disposed of the writ by directing the Executive Engineer to treat the representation as a Clause 6.5 application and decide it by a speaking order, staying disconnection for six weeks or until that disposal, whichever was earlier.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending representation treated as Clause 6.5 application

HOLDING

A consumer representation against alleged inflated bills, left undecided while disconnection is threatened, is to be treated by the Executive Engineer as an application under Clause 6.5 of the Electricity Supply Code, 2005 and decided by a reasoned speaking order; coercive disconnection remains in abeyance for six weeks or until that disposal, whichever is earlier. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

Pending representation against alleged inflated bills treated as a Clause 6.5 application; Executive Engineer directed to decide by a speaking order within four weeks; coercive disconnection stayed for six weeks or until that disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILLS WERE INFLATED

Writ disposed without examining the billing dispute on merits; relegated to Clause 6.5. ¶ 1